Simulation: ***WT – Wrongful Termination***

Instructions for: **Initiator**

Wrongful Termination

The information provided below should give you a good idea of the conflict being discussed, your initial position, your underlying needs and interests, and potential options. However, you should elaborate on all of the information provided. When you are asked questions that are not answered below, imagine how your character might respond to the mediator's questions and create specific answers accordingly. Please remember to refer to all parties as they requested, including names and pronouns. Although we are asking you to play the role of someone with interests and values that you may not share, and in a context in which you may be unfamiliar, please still speak from an authentic place. Remember you are role playing a conflict, not a person.

Overview of Situation *or answer to* "Tell me what brought you here today?"

After 20 years of loyalty to RPI, a travel agency, you were one of 20 employees, out of 100 total, laid off in a supposed restructuring process. You think this is because recently you took leave under the Family and Medical Leave Act (FMLA) to care for your partner after surgery. You were the Director of Marketing for RPI and now you've heard rumors that the Assistant Director of Operations, who is new to the company, will perform your duties. Your work has always been of superior quality - as evidenced by multiple promotions, evaluations and raises. In fact, RPI prospered because of your hard work and innovative ideas. "Where am I supposed to work now?" "How am I going to pay college tuition for my kids?" You have given most of your professional career to this company, are bitter about what happened, and believe RPI should be punished! When RPI fired you, they offered you an insulting severance package of $30,000 (a week's pay for every year at the company, $1500/week x 20 years = $30,000). You are at the mediation with the Respondent, who is the Vice President of Human Resources for RPI.

Initial Position *or answer to* "What would you like to see happen here today?"

1. You want your job back!
2. *If that isn't possible,* then you want $300,000 in damages.

Needs and Interests and Potential Options for Discussion during Cross Talk and Caucus

Remember that many conflicted individuals do not know their own needs and interests. Do not tell the mediator what your needs and interests are. Only begin to disclose them as the mediator asks relevant questions. Additionally, potential options may be listed for your guidance. Feel free to use them when the mediator helps you develop options, or when it feels natural – but not to just "give in."

JOB: You have been a loyal employee at RPI for 20 years, and are proud of the fact that you haven't bounced around from one job to another. You truly loved your job and RPI as a company. You are hugely responsible for its earlier successes. Now, RPI is stabbing you in the back because you have family obligations?! You don't understand why they would fire you - you have a lot of experience and could help RPI weather this current economic storm! The idiot from Operations who took your job doesn't have half the experience you do! You have watched the company grow and moved through different positions as you gained more experience and knowledge about the industry. Bottom line, you feel betrayed by RPI! You loved your job and are now facing unemployment. You are never going to find another job of equal salary/level in this economy! **N/I = you deserve respect and recognition for your hard work and dedication.**

MONEY: You have a mortgage to pay, two children and a partner to provide for, credit card debt, and are now unemployed in a difficult job market! You have given some of the best years of your life to RPI, because you cared about the company and planned to work for them until retirement. You feel like you earned every penny of your salary – working late, never abusing company policy, and always looking after RPI's bottom line. Now, you are faced with literally not being able to afford you mortgage payments on top of raising two kids. How is this fair? You are insulted by their severance package offer of $30,000. **N/I= money to pay mortgage and providing for your children.**

POSSIBLE COURT CASE: If asked by the Mediator, you have talked with a lawyer. The lawyer advised you that these cases are hard to prove and litigation can last years. You learned that the best recovery on these facts would be $300,000, the worst zero, and the likely range $50,000 - $150,000. **N/I = ensure you have SOME money coming to cover expenses while you get back on your feet!**

RELATIONSHIP/COMMUNICATION: Getting laid off by the Respondent, who has only worked at RPI for 3 years, is embarrassing. Who are they to say who the good employees are and who should be let go. **N/I = recognition for your hard work and dedication to RPI.**

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